

Policy 212-3

Policy Statement:

Each Organization Member of U.S. Soccer must maintain, as part of its risk management program, an athlete and participant safety program that includes the six components listed below.

1. Prohibited Conduct Policy

Organization Members must implement and enforce, at a minimum, U.S. Soccer's Model Prohibited Conduct Policy, incorporated herein by reference, which prohibits misconduct including bullying, hazing, harassment (including sexual harassment), emotional misconduct, physical misconduct, and sexual misconduct, as those terms are defined by the U.S. Center for SafeSport's SafeSport Code for the U.S. Olympic and Paralympic Movements (the "**SafeSport Code**").¹

Organization Members must apply, at a minimum, the Model Prohibited Conduct Policy to all activities under the Organization Member's jurisdiction and at least to (1) Organization Member employees and board members; (2) the members of such Organization Member; (3) athletes who are minors or referees who are minors (collectively, "**Minor Athletes**"); and (4) **any** adult individuals the Organization Member authorizes, approves or appoints to have Regular Contact (as defined in the U.S. Soccer Model Minor Athlete Abuse Prevention Policy ("Model MAAPP"), incorporated herein by reference) with or authority over Minor Athletes (collectively, "**Adult Participants**"). This policy must also prohibit retaliation against individuals making good faith reports of misconduct.

2. Appropriate Background Screening

All Organization Members with Minor Athletes must implement and enforce a policy that requires appropriate background screening of at least adult individuals authorized to have Regular Contact with or authority over Minor Athletes by the earlier of 1) prior to Regular Contact with a Minor Athlete; or 2) within the first 45 days of the individual taking on the role giving them access to Minor Athletes.

At a minimum, the policy should include screening against applicable sex offender registries in the relevant state and a check against the Amateur Organization Member's suspension database, U.S. Soccer's disqualification list, and the SafeSport disciplinary records available at: www.safesport.org.²

An Organization Member may decide that its background check requirements will not apply to certain or all people under 18 years of age, provided that it clearly publishes that fact in its policy documentation.

¹ The SafeSport Code is available at: <https://www.safesport.org/policies-procedures>.

² Please note that many, if not all, of these references and resources for background screening are publicly available at no cost.

3. Education and Training

Organization Members must implement and enforce a policy (1) requiring education and training designed to meet the Organization Member's obligations under the this Policy, the SafeSport Act, and the U.S. Soccer Model MAAPP for (a) Organization Member employees and board members and (b) Adult Participants who have Regular Contact with or authority over Minor Athletes, in each case as a condition to participation, (2) subject to parental consent, offer and provide training to Minor Athletes and (3) offer training to parents of Minor Athletes. The Policy should require the following:

A. Initial Training for Adults: Core Center for SafeSport Training

The following Adult Participants must complete the SafeSport Trained Core either through the Center's online training or the Center's approved, in-person training:

- i. Adult Participants who have Regular Contact with any amateur athlete(s) who is a minor;
- ii. Adult Participants who have authority over any amateur athlete(s) who is a minor;
- iii. Adult Participants who are employees or board members of an Organization Member.

Adult Participants who are medical providers required to take training under Section (a) can take the Health Professionals Course in lieu of the SafeSport Trained Core.

These policies must require Adult Participants to complete the U.S. Center for SafeSport's Core SafeSport Training (i.e., the Center's online training or the Center's approved in-person training), and as applicable, follow-up refresher course training, with any new Adult Participants to receive initial training upon the earlier of:

- Before Regular Contact with an amateur athlete who is a minor begins, and
- Within the first 45 days of either initial membership or upon beginning a new role subjecting the adult to this policy.

Each Organization Member must track whether its Adult Participants have completed the training required by Section 3.

B. Refresher Course(s) for Adults

The above listed Adult Participants must complete a refresher course on an annual basis, beginning the calendar year after completing the SafeSport Trained Core. Every four years, Adult Participants will complete the SafeSport Trained Core training. Adult Participants who are medical providers can take the Health Professionals Course in lieu of the SafeSport Trained Core and are required to take the refresher courses on an annual basis.

C. Training for Minor Athletes

Organization Members with Minor Athletes must – subject to parental consent – offer and provide the U.S. Center for SafeSport's minor athlete training regarding the prevention of child abuse to any Minor Athletes every 12 months. The Center's minor athlete training can be

found at <https://safesporttrained.org/#/public-dashboard>. Organization Members with Minor Athletes must track:

- A description of the training(s);
- The date the training(s) was offered and given, and
- A description of how the training(s) was offered and given.

D. Training for Parents

Organization Members with Minor Athletes must offer and provide the U.S. Center for SafeSport's parent training to parents of Minor Athletes every 12 months. The U.S. Center for SafeSport's parent course is located at <https://safesporttrained.org/#/public-dashboard>.

4. Reporting

Organization Members must maintain a procedure for reporting misconduct, including violation of the SafeSport Code or the U.S. Soccer Model MAAPP, to the Organization Member and, to the extent required by the SafeSport Act, mandate reporting to appropriate law enforcement authorities and/or the U.S. Center for SafeSport. The procedure should be clear that reporting may be made anonymously, and that no direct fees or other cost is involved in making a report. Each Organization Member must also maintain a policy prohibiting retaliation against individuals making good faith reports of misconduct.

5. Minor Athlete Abuse Prevention Policy

All Organization Members are required to adopt the U.S. Soccer Model Minor Athlete Abuse Prevention Policy ("MAAPP"), which includes the Education and Training requirement set forth in Section 3 of this policy, as well the following required abuse prevention policies: One-on-One Interactions, including meetings and individual training sessions

- Manual Therapy and Therapeutic and Recovery Modalities
- Locker rooms and changing areas
- Electronic communications
- Transportation
- Lodging and Residential Environments

A. Minor Athletes who become adult athletes

All athletes turning 18 who still meet the threshold for Regular Contact or authority must complete the SafeSport Core training, and must comply with the MAAPP, including its abuse prevention policies, absent the Close-In-Age exception which may apply to the enforcement of abuse prevention policies but not to the Education and Training requirement set forth in Section 3 of this policy and the MAAPP.

B. Implementation

The U.S. Center for SafeSport's MAAPP sets a minimum standard for compliance. In implementing the MAAPP, Organization Members may choose to implement a policy that is stricter than the MAAPP.

6. Enforcement

A. By Organization Members

Each Organization Member must enforce its Prohibited Conduct Policy and MAAPP. Specifically, violations of the policy must be subject to an appropriate grievance process that is materially free of bias and conflicts of interest, to address allegations of misconduct following the report or complaint of misconduct. This grievance process must include the opportunity for review by a disinterested individual or body and a right to appeal a final decision rendered by an Organization Member's process pursuant to U.S. Soccer Bylaw 704.

B. By U.S. Soccer

Pursuant to Bylaw 212, U.S. Soccer reserves the right to, either directly or through a contracted third-party service provider, survey, audit, require certifications of compliance with, and otherwise review compliance by its Organization Members with this policy. Failure of any Organization Member to issue and implement the policies required by this Policy 212-3 will constitute a violation of Bylaw 212 Section 1.